

No Grounds	2%	2%	2%	2%
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Table 5: HRTO Performance Measures

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Hearings and Mediation	2019-2020 % of time standard is met	2018-2019 % of time standard is met	2017-2018 % of time standard is met	2016-2017 % of time standard is met
First mediation date offered within 150 days of the date parties agree to mediation	27%	62%	84%	92%
First hearing date offered within 180 days of the date the application is ready to proceed to hearing	7%	35%	38%	34%
Decisions for hearings which take 3 days or less will be issued within 90 days	76%	76%	81%	68%
Decisions for hearings which take longer than 3 days, will be issued within 180 days	50%	29%	33%	17%

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Landlord and Tenant Board

The Landlord and Tenant Board (LTB) resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act* (RTA). The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

Operational Highlights

In 2019-20, e-File became the most popular option to file an application. The LTB received 45,899 applications through e-File, which accounted for more than half of all applications filed. The e-File system allows landlords and tenants across Ontario to file the most common LTB applications online at any time, from anywhere, and at a discounted fee.

In August 2019, the LTB revised the processing and scheduling protocol for Above Guideline Increase (AGI) applications in order to improve the wait time to schedule a hearing. A notice of Case Management Hearing is now issued immediately following processing.

In December 2019, the LTB expanded, refreshed and positioned the [Frequently Asked Questions \(FAQ\)](#) section more prominently on its website to promote visibility of key information and enhance public use. The [Contact the LTB section](#) was also updated to capture more accurate contact centre wait times, and links to information guides were added.

The LTB engaged in three intensive adjudicator recruitment efforts in 2019-20 to increase and improve service delivery. The most recent round of recruitment focused on filling remaining gaps by recruiting more bilingual members and additional members for regions with the most critical adjudicator shortages.

The LTB implemented several initiatives in 2019-20 to help streamline its processes and address critical challenges. These included initiatives that allowed certain services to be performed by members electronically such as routine adjudication requests, order processing and issuance. Additionally, changes were made to the scheduling model that would allow the LTB to assess needs and allocate member resources more effectively across all regions of Ontario.

On January 9, 2020, the Ontario Ombudsman announced an investigation into delays at the LTB. The Ombudsman noted that "the investigation will focus on whether the government is taking adequate steps to address the delays and backlogged cases". Although the terms of some adjudicators were recently extended and a few more have been recruited, the investigation will also look into other potential systemic factors that may be contributing to the problem, such as relevant legislation, training, funding and technology. Tribunals Ontario and the LTB are fully cooperating with the Ombudsman's office and look forward to the Ombudsman's recommendations.

Statistics

Table 1: LTB Applications

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Application	2019-2020	2018-2019	2017-2018
Applications Received*	80,874	82,095	80,791
Applications Resolved**	72,064	79,476	78,744
Active Cases at Year-End***	22,803	14,726	12,944

* The totals do not include non-profit co-operative housing eviction applications.

** In 2019-20 the majority of applications – 56.9% – are resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), through mediation – 14.2% (mediated or ordered by hearing mediated), and through withdrawals – 14.6%.

*** In a small number of cases, “resolved” applications are re-opened in the case management system (e.g. when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus “applications received,” less the applications resolved.”

Table 2: Landlord Applications Received by Type

Table 2: Landlord Applications Received by Type

Case Type	Application Type	2019-2020	2018-2019	2017-2018	2016-2017
A1	Determine whether the act applies	102	126	96	104
A2	Sublet or assignment	491	378	332	264
A3	Combined application (usually includes an L1)	2,986	3,362	3,878	4,067
A4	Vary rent reduction amount	86	173	220	134
L1	Terminate & evict for non-payment of rent	44,621	46,043	47,595	49,489
L2	Terminate for other reasons and evict	15,732	13,945	11,404	9,987
L3	Termination – tenant gave notice or agreed	1,877	1,711	1,622	1,439
L4	Terminate the tenancy – failed settlement	5,156	5,571	5,552	5,478
L5	Rent increase above the guideline	758	717	559	575
L6	Review of provincial work order	1	4	5	3
L7	Transfer tenant to care home	1	5	1	1
L8	Tenant changed locks	41	39	29	37
L9	Application to collect rent	900	1,394	1,218	1,628
Total		72,752	73,738	72,511	73,206

Table 3: Tenant Applications Received by Type

Table 3: Tenant Applications Received by Type

Case Type	Application Description	2019-2020	2018-2019	2017-2018	2016-2017
A1	Determine whether the act applies	85	116	91	49

A2	Sublet or assignment	62	66	57	55
A3	Combined application	1,610	1,780	1,798	1,634
A4	Vary rent reduction amount	0	1	2	0
T1	Rent rebate (e.g. illegal rent)	884	863	765	732
T2	Tenant rights	3,072	3,053	2,832	3,807
T3	Rent reduction	78	148	71	68
T4	Failed rent increase above guideline	4	1	3	6
T5	Bad faith notice of termination	408	355	295	211
T6	Maintenance	1,914	1,970	1,818	1,675
T7	Suite meters	5	4	6	7
Total		8,122	8,357	7,738	8,244

Table 4: Co-Op Applications Received by Type

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Case Type	Application Description	2019-2020	2018-2019	2017-2018	2016-2017
C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	217	251	247	274
C1/2	Combined C1 and C2 applications	116	118	114	102
C2	Application to end the occupancy of the member unit and evict the member	141	107	86	93
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	6	6	3
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/ order	91	81	89	110
Total		568	563	542	582

Table 5: Call Centre

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Calls	2019-2020	2018-2019	2017-2018	2016-2017
Calls handled	201,871	242,892	272,719	261,154
Average time per call	4:37	4:48	4:57	5:19
Average wait time in the queue	17:36	15:18	9:04	9:46

Table 6: LTB Performance Measures

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Performance Measure	2019-2020	2018-2019	2017-2018
L1 and L9 applications will be scheduled for a hearing within 25 business days	15% (45.6 days)	35% (31.8 days)	54% (26.1 days)
Decisions (Orders) for L1 and L9 applications will be issued within 4 business days at the conclusion of the final hearing	58% (5.8 days)	70% (4.6 days)	78% (4 days)
All other LTB applications (excluding L5 and A4) will be scheduled for a hearing within 30 business days	16% (52.7 days)	37% (36.7 days)	53% (31.2 days)
Decisions (Orders) for all other LTB applications (excluding L5 and A4) will be issued within 10 business days at the conclusion of the final hearing	71% (11.7 days)	79% (9.5 days)	82% (7.6 days)

Table 7: Requests for Reviews

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Requests	2019-2020	2018-2019
Total number of requests for review	3,238	3,595
Denied requests for review	833	844
Requests for review sent to hearing	2,405	2,751

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Licence Appeal Tribunal

The Licence Appeal Tribunal (LAT) adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from the following:

- *Accessibility for Ontarians with Disabilities Act*
- *Alcohol, Cannabis and Gaming Regulation and Public Protection Act*
- *Bailiffs Act*
- *Building Code Act*
- *Cannabis Licence Act*
- *Child Care and Early Years Act*
- *Child, Youth and Family Services Act*
- *Collection and Debt Settlement Services Act*
- *Condominium Act*
- *Condominium Management Services Act*
- *Consumer Protection Act*
- *Consumer Reporting Act*
- *Discriminatory Business Practices Act*
- *Film Classification Act*
- *Funeral, Burial and Cremation Services Act*
- *Gaming Control Act*
- *Highway Traffic Act*
- *Horse Racing Licence Act*
- *Insurance Act*
- *Intercountry Adoption Act*
- *Liquor Control Act*
- *Liquor Licence Act*